

25STLC08001 25STLC08001

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-14

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Case Number: 25STLC08001 Hearing Date: July 14, 2026 Dept: 26

TENTATIVE RULING:

Appellant Fidencio Barcenas' Motion to Set Aside Order for Lack of Notice and Request New Hearing Date is denied.

Analysis:

On October 21, 2025, Appellant Fidencio Barcenas ("Appellant"), in propria persona, filed the instant appeal of an administrative hearing against Respondent City of Norwalk ("Respondent"). The Court set the appeal for hearing on January 23, 2026. (Notice of Appeal, 10/22/25.) On January 23, 2026, Appellant failed to appear and the Court held the hearing with only Respondent appearing. (Minute Order, 01/23/26.) Thereafter, the Court affirmed the citation and ordered Appellant to recover nothing. (Ibid.)

Appellant filed the instant Motion to Set Aside Order for Lack of Notice and Request New Hearing Date on February 5, 2026. Appellant personally served Respondent with the Motion on February 26, 2026. (Proof of Service, filed 02/27/26.) At the initial hearing on April 28, 2026, the Court ordered Appellant "to file and serve an affidavit in support of the Motion, in compliance with the requirements of Code of Civil Procedure section 2015.5." (Minute Order, 04/28/26.) Appellant filed an affidavit the same day, however, Respondent filed an opposition on May 19, 2026 contending that it was not properly served with the supplemental papers.

At the next hearing on June 2, 2026, the Court continued the matter again to ensure that Respondent had sufficient time to respond to the affidavit. (Minute Order, 06/02/26.) Respondent filed its substantive opposition on June 24, 2026.

Discussion

The Motion is made pursuant to Code of Civil Procedure section 473, subdivision (b). An application for discretionary relief pursuant to Code of Civil Procedure section 473, subdivision (b) must be made within a reasonable time, no more than six months after entry of the order from which relief is sought, and must be accompanied by an affidavit of fault attesting to the defendant's excusable mistake, inadvertence, surprise or neglect. (Code Civ. Proc., § 473, subd. (b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.) The statute also requires that the motion be accompanied by a copy of the moving defendant's proposed pleading. (Code Civ. Proc., § 473, subd. (b).)

Appellant timely filed the instant Motion less than two weeks after the hearing date on the appeal and supports it with an affidavit of fault. Specifically, Appellant contends that Appellant did not receive notice of the hearing on the appeal by any manner (mail, in-person, or other) and would have appeared if provided proper notice. (Motion, Barcenas Decl., p. 2.)

Respondent argues in opposition that the Notice of Appeal filed by the Deputy Clerk on October 22, 2025 lists Plaintiff's address as 15602 Cameo Ave., Norwalk, CA 90650. (Opp., Olague Decl., ¶4 and Exh. A.) This is the same address on Appellant's papers. Respondent's counsel also spoke to Deputy Clerk M. Guzman, who explained that the file-stamp and electronic signature on the Notice of Appeal indicate that they mailed it to Appellant's address as listed. (Id. at ¶¶6-8.) Consistent with this, the Notice of Appeal advised Appellant that the Court would return a copy of the Notice with the notice with "the date, place, and time of the hearing filled in" for Appellant to serve on Respondent. Respondent asks the Court to discount Appellant's declaration that they did not receive notice as conclusory and insufficient.

The Court agrees that Appellant has not shown that the Clerk's office did not return the Notice of Appeal to Appellant at Appellant's address listed thereon, or any other basis for discretionary relief. A letter correctly addressed and properly mailed is presumed to have been received in the ordinary course of mail. (Code Civ. Proc., § 641.) When a party by declaration denies receipt, the presumption is removed. (Bear Creek Master Assn. v. Edwards (2005) 130 Cal. App. 4th 1470, 1486.) "[T]he disappearance of the presumption does not mean there is insufficient evidence to support the [finding that notice was received.] The trier of fact must then weigh the denial of receipt against the inference of receipt arising from proof of mailing and decide whether or not the letter was received." (Id. (internal citations omitted).)

Here, Appellant's declaration states only that Appellant did not receive notice, yet Appellant appears to have received all the other mailings in this case, including the January 23, 2026 order, which was sent to the same address. Appellant did not file a reply to address the evidence in support of the opposition regarding service of the Notice of Appeal by the clerk's office. Accordingly, on this record, the Court concludes that the Notice of Appeal was mailed properly. Appellant does not claim any other basis for discretionary relief, such as having received but misplaced the Notice, thus the Court has no representation to that effect to evaluate. Nonetheless, receiving but misplacing the Notice of Appeal, combined with failing to follow up to confirm the hearing date in any other manner, would likely not constitute excusable neglect, i.e. neglect "that might have been the act of a reasonably prudent person under the same circumstances." (Huh v. Wang (2007) 158 Cal. App. 4th 1406, 1419; McClain v. Kissler (2019) 39 Cal. App. 5th 399, 415.) This was Appellant's appeal; a reasonably prudent person pursuing an appeal would review the docket for the hearing date at some point during the three months after the Notice of Appeal was initially filed. (See Cnty. of San Bernardino v. Mancini (2022) 83 Cal. App. 5th 1095, 1103 (failure to attend hearing inexcusable where counsel "could have easily confirmed whether the hearing would proceed . . . by calling the court or checking the docket."))

Based on the foregoing, the Court finds relief is not warranted under Code of Civil Procedure section 473, subdivision (b).

Conclusion

Appellant Fidencio Barcenas' Motion to Set Aside Order for Lack of Notice and Request New Hearing Date is denied.

Judicial Assistant to give notice.